

Line 4

Case Name: *Melissa Ikeda, et al. v. FCA US LLC, et al.*

Case No.: 25CV481480

See Line 3 above for complete tentative ruling on both the Demurrer and the Motion to Strike. After the hearing, the Court will prepare and file one formal Order on both the Demurrer and the Motion to Strike.

Line 5

Case Name: *Kamila Kraba v. Armsby Lane Road Association*

Case No.: 25CV478200

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff and Cross-Defendant Kamila Kraba (“Kraba”) demurs under Code of Civil Procedure Sections 430.10 and 430.50 to the Cross-Complaint of Armsby Lane Road Association (“ALRA”) on the following grounds:

1. Lack of Capacity to Sue and Unauthorized Practice of Law (C.C.P. § 430.10(b); Bus. & Prof. Code § 6125);
2. Uncertainty (C.C.P. § 430.10(f));
3. Failure to State Facts Sufficient to Constitute a Cause of Action (C.C.P. § 430.10(e));
4. Violation of Public Policy and Ethical Rules (C.R.P.C. Rules 3.7 & 1.7);
5. Reliance on False Testimony and Misrepresentations (Penal Code § 118; C.C.P. 128.7);
6. Misapplication of Civil Code § 845;
7. Failure of Mandatory Meet and Confer (C.C.P. § 430.41)

Notice of Demurrer (the “Demurrer”) at 2:21-52¹ (filed: Feb 11, 2026).

The Demurrer came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background & Factual Allegations of the Cross-Complaint

ALRA is an unincorporated association of neighbors who reside on Armsby Lane or one of its side roads, which was organized to provide a framework for maintenance of Armsby Lane. ALRA is governed by the Armsby Lane Road Agreement bylaws and Joint and Mutual Repair and Maintenance Agreement which runs with the properties abutting and using Armsby Lane. Kamila Kraba owns and resides at a property located on Armsby Lane and is a member of ALRA. (Cross-Complaint ¶¶ 1, 2)

At an annual meeting held on May 29, 2024, a majority of the ALRA members approved a special assessment for repairing and resurfacing the length of Armsby Lane as well as repairing the bridge on Armsby. The approved amount of the special assessment was \$341,780.00 plus twelve percent. Kraba did not attend the meeting but voted against the

¹ These are the (unusual) line numbers that appear on this filed Demurrer.